

Court No. - 34

Case :- CONTEMPT APPLICATION (CIVIL) No. - 3954 of 2011

Petitioner :- Rakesh Kumar

Respondent :- Amar Nath Singh, V.P., Torrent Power Corp.

Petitioner Counsel :- Hitesh Pachori

Hon'ble Sanjay Misra,J.

Prima-facie, it appears that the opposite party has disobeyed the order contempt whereof is alleged.

Issue notice to the opposite party Sri Amar Nath Singh, Vice President, Torrent Power Corporation Ltd., Agra, fixing an early date to reply to the allegations on non-compliance of the order dated 26.04.2011 passed in Writ Petition No.24090 of 2011 (Rakesh Kumar Vs. State of U.P. & others) which was served on the opposite party on 06.05.2011.

List on the date so fixed.

Order Date :- 19.8.2011

pawan

Court No. - 34

Case :- CONTEMPT APPLICATION (CIVIL) No. - 3954 of 2011

Petitioner :- Rakesh Kumar

Respondent :- Amar Nath Singh, V.P., Torrent Power Corp.

Petitioner Counsel :- Hitesh Pachori

Respondent Counsel :- Sc

Hon'ble Sanjay Misra,J.

Sri Ashutosh Srivastava, Advocate has filed power on behalf of the opposite party today. Let the same be taken on record. He prays for and is granted a week's time to file reply to this contempt petition.

Let this matter be listed after a week.

Office is required to show the name of Sri Ashutosh Srivastava as counsel for the opposite party when the matter is listed next.

Order Date :- 12.10.2011

Lbm/-

Court No. - 50

Case :- CONTEMPT APPLICATION (CIVIL) No. - 3954 of 2011

Applicant :- Rakesh Kumar

Opposite Party :- Amar Nath Singh V.P. Torrent Power Corp.

Counsel for Applicant :- Hitesh Pachori

Counsel for Opposite Party :- Ashutosh Srivastava,SC

Hon'ble Jayant Banerji,J.

On the request made on behalf of Shri Hitesh Pachori, learned counsel for the applicant, list this matter in the next cause list to enable him to obtain instructions.

Order Date :- 30.4.2019

SK

(Jayant Banerji, J.)

Court No. - 50

Case :- CONTEMPT APPLICATION (CIVIL) No. - 3954 of 2011

Applicant :- Rakesh Kumar

Opposite Party :- Amar Nath Singh V.P. Torrent Power Corp.

Counsel for Applicant :- Hitesh Pachori

Counsel for Opposite Party :- Ashutosh Srivastava,SC

Hon'ble Jayant Banerji,J.

Sri Hitesh Pachori, learned counsel for the applicant has again sought an adjournment but on the ground of illness.

Sri Ashutosh Srivastava, learned counsel for the opposite party states that the cause does not survive.

List peremptorily in the next cause list.

Order Date :- 7.5.2019

sfa/

(Jayant Banerji, J)

Court No. - 50

Case :- CONTEMPT APPLICATION (CIVIL) No. - 3954 of 2011

Applicant :- Rakesh Kumar

Opposite Party :- Amar Nath Singh V.P. Torrent Power Corp.

Counsel for Applicant :- Hitesh Pachori

Counsel for Opposite Party :- Ashutosh Srivastava,SC

Hon'ble Jayant Banerji,J.

Shri Hitesh Pachori, learned counsel for the applicant states that instructions are still awaited from the applicant and prays for a last chance to seek instructions.

List this matter peremptorily in the next cause list.

It is made clear that the matter shall not be adjourned when it is listed next.

Order Date :- 14.5.2019

SK

(Jayant Banerji, J.)

Court No. - 50

Case :- CONTEMPT APPLICATION (CIVIL) No. - 3954 of 2011

Applicant :- Rakesh Kumar

Opposite Party :- Amar Nath Singh V.P. Torrent Power Corp.

Counsel for Applicant :- Hitesh Pachori

Counsel for Opposite Party :- Ashutosh Srivastava,SC

Hon'ble Jayant Banerji,J.

Heard Sri Hitesh Pachori, learned counsel for the applicant. Sri Ashutosh Srivastava, learned counsel appears for the opposite party.

By means of this contempt petition, flouting of the order dated 26.4.2011 passed by the writ court in Writ-C No. 24090 of 2011(Rakesh Kumar Vs. State of U.P. and others) is alleged. On 26.4.2011 the writ court passed the following order:-

"The petitioner's contention is that he wants to pay the amount as claimed by the respondents within the time to be specified by the Court and subject to deposit the same the connection of the electricity may be restored.

Sri Ajay Kumar Singh, learned counsel appearing for the respondent Corporation has contended that the respondent-Corporation is ready to consider the cause of the petitioner.

Clause 6.5 of the U.P. Electricity Supply Code, 2005 makes such provision subject to deposit of entire amount or on the basis of electricity charges calculated on the basis of average electricity bills of the preceding six months, whichever is less and consider the complaint, if any by the competent authority presumably the reconnection thereof on the basis after drawing an inference in respect thereto.

We are of the view since the petitioner is inclined to deposit the entire amount, the same will be deposited within a period of two months from the date of obtaining a certified copy of this order and subject to deposit the same he will make an application for the purpose of restoring electricity connection, upon which the authority concerned after considering all pros and cons will be able to restore the same without delaying the cause but not beyond a period of 72 hours from making such application.

The writ petition is accordingly disposed of, however, without imposing any cost.

However, this order is irrespective of the case of theft, if any, which will be dealt with independently. If such cause is established the authority concerned is entitled to take steps in accordance with law."

It is the contention of the learned counsel for the applicant that

under the provision of Section 6.5 (b) of the U.P. Electricity Supply Code, 2005 (hereinafter referred to as the Code of 2005), the applicant is entitled to make payment of the bills under protest of (i) an amount equal to the sum claimed from him, or (ii) the electricity charges due from him for each month calculated on the basis of average charge for electricity paid by him during the preceding six months, whichever is less, and file a complaint with the competent authority, as the case may be, before the due date for payment. It is stated that in accordance with clause (ii) of Section 6.5(b) of the Code of 2005, a banker's cheque amounting to Rs. 4832/ was prepared and offered to the opposite party who refused to accept the same and comply with the order of the writ court.

In the counter affidavit filed by the opposite party which has been referred by Sri Ashutosh Srivastava, learned counsel for the opposite party, in Annexure No. CA-1, a letter dated 25.7.2011 addressed to the applicant has been enclosed. In this letter, it has been stated that the High Court had given a clear direction to the applicant to deposit the entire amount within two months but the same has not been deposited with the respondent company. It was further stated that instead of making the payment of entire amount of Rs. 1,31,443/, against the final assessment bill, the applicant had sent a bankers cheque for an amount of Rs. 4832/ which is violation of the order of the High Court and hence is not acceptable.

Learned counsel for the opposite party has further drawn attention of the Court to the fact that in view of Section 6.5 of the Code of 2005, only a complaint can be made with respect to disputed bill and not in the case of theft. The case of the opposite party is that the applicant was found committing theft and an FIR was lodged and a provisional assessment followed by final assessment were done. Accordingly, the applicant was required to deposit the entire amount as mentioned in the final assessment.

A perusal of the order of the writ court reveals that it was passed after considering the provisions of Section 6.5 of the Code of 2005 and the direction was given on the inclination expressed by the applicant himself to deposit the entire amount and in case the amount is deposited within two months, he was to make an application for the purpose of restoring the electricity connection upon which, the authority concerned after considering all pros and cons, was to restore the same.

Section 6.5(b) of the Code, 2005 itself provides for the consumer to make payment of the bill under protest of an amount equal to the sum claimed from him, or the electricity

charges due from him for each month calculated on the basis of average charge for the electricity paid by him during the preceding six months, whichever is less, and file a complaint with the competent authority, as the case may be, before the due date for payment.

Thus, clause (i) of Section 6.5(b) also entails that the amount equal to the sum claimed from him can be paid by the applicant. Therefore, the contention of the learned counsel for the applicant that he was not required by the Court to pay the entire amount cannot be sustained.

Accordingly, in view of the aforesaid, it cannot be said that the case of contempt is made out against the opposite party and this application is, accordingly, **dismissed**.

Order Date :- 21.5.2019

sfa/

(Jayant Banerji, J)